

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Robert E. Blackburn

Date: September 12, 2016

Deputy Clerk: Kathleen Finney
Court Reporter: Tracy Weir

Civil Action No. 14-cv-0778-REB-MEH

Parties:

UNITED STATES WELDING INC,

Plaintiff,
v.

Counsel:

Marcus Harris
George Stephen Long
Kristen Lockwood
Peter Ordower

TECSYS INC,

Defendant.

Christopher Toll
Benjamin Simler

COURTROOM MINUTES

Trial to Jury - Day One

8:42 a.m. Court in session.

Case called. Parties are present. Also present at plaintiff's table is Mary Ryan, Richard Lofgren and Kathy Lofgren; present at defendant's table is Ben Broda-Bahm and Peter Brereton.

Outside the presence of the jury for consideration of the defendant's **Emergency Motion for Reconsideration and to Amend Final Pretrial Order** [# 333] filed September 9, 2016, and the defendant's **Emergency Motion for Continuance of Trial and to Reopen Discovery** [#334] filed September 9, 2016.

Response by Mr. Long.

Reply by Mr. Toll.

9:04 a.m. Court in recess.

9:18 a.m. Court in session.

Out of the presence of the jury.

It is Ordered as follows:

- that the defendant's **Emergency Motion for Reconsideration and to Amend Final Pretrial Order** [# 333] is **taken under advisement** pending further order; and
- that the defendant's **Emergency Motion for Continuance of Trial and to Reopen Discovery** [#334] is **denied**.

Statement by Mr. Long.

9:21 a.m. Court in recess.

Jury panel is present; 15 jurors are seated in the jury box prior to the court calling the case.

9:36 a.m. Court in session.

9:38 a.m. Civil voir dire oath given to jury panel.

Opening statements by the court.

9:42 a.m. Court introduces plaintiff.

9:43 a.m. Court introduces defendants.

Court introduces court staff.

Further statements by the court.

10:03 a.m. Voir dire by court commences.

Challenges for Cause by the Court:

1. 100321228
2. 100316302
3. 100324425
4. 100320941
5. 100304457
6. 100281943
7. 100316183
8. 100281114
9. 100282596

Court advises prospective jury panel regarding admonitions during the break.

11:05 a.m. Court in recess.

11:23 a.m. Court in session.

Prospective jury panel is present.

11:24 a.m. - Voir dire by plaintiff commences.

11:39 a.m. - Voir dire by defendant commences.

11:54 a.m. - Voir dire by the court.

11:57 a.m. - 12:00 p.m. Bench Conference.

Parties exercise their peremptory challenges.

Peremptory Challenges by Plaintiff:

1. #100325071
2. #100321228
3. #100326936

Peremptory Challenges by Defendant:

1. #100293760
2. #100309062
3. #100296517

12:08 p.m. Civil jury oath administered.

Nine Jurors Sworn to Try the Case:

1. #100320048
2. #100301615
3. #100313894
4. #100321648
5. #100291819
6. #100307751
7. #100304250
8. #100285438
9. #100282508

Courtroom deputy clerk distributes the Juror Code of Conduct to jurors and parties. Court reviews same with the jury.

Court advises jurors regarding admonitions during the lunch break.

12:13 p.m. Court in recess.

1:32 p.m. Court in session.

1:34 p.m. Jury is present.

Court gives preliminary jury instructions.

1:51 p.m. Court's sequestration order is in effect.

1:53 p.m. Plaintiff's opening statement by Mr. Long.

2:34 p.m. Defendant's opening statement by Mr. Toll.

Stipulated Exhibits 1 - 190, and 305 are now admitted with leave to publish.

3:03 p.m. Court in recess.

3:24 p.m. Court in session.

3:25 p.m. Jury is present.

3:27 p.m. Plaintiff, Richard Lofgren, called and sworn.

Direct examination by Mr. Ordower.

Exhibit Identified: 194.

Exhibit Admitted: 194.

4:42 p.m. Mr. Lofgren steps down.

4:43 p.m. Court advises jurors regarding admonitions of trial. Trial will resume tomorrow at 8:30 a.m. Jury exits.

Court colloquy regarding housekeeping matters of the defendant's objection to the questioning of the witness. Briefs on the matter may be filed by tomorrow morning by 8:00 a.m.

4:49 p.m. Court in recess.

Total time in court: 05:40

Trial continued.